

		Thus, the motion does not meet the requirements of Code Civ. Proc. § 2031.210(b). The motion is DENIED. Defendant Trabuco Highlands Comm. Assoc. shall give notice.
9	Luna v. Hyundai Motor America 2023-01339476 Motion to Enforce Settlement	Plaintiffs, Santiago Luna and Jonathan Luna have shown the parties entered a settlement agreement which provided for the Court to retain jurisdiction pursuant to section Code Civ. Proc. § 664.6. Plaintiffs' request to enter judgment pursuant to the settlement is GRANTED. The settlement required Defendant to schedule the vehicle surrender within 60 days and for Plaintiffs to provide vehicle registration and other necessary documents to effectuate the transfer. (Ex. A, ¶ 3.) Plaintiffs assert Defendant failed to timely schedule the surrender and Defendant asserts Plaintiffs failed to timely provide current registration. Since the 60-day surrender period has passed, enforcing the settlement agreement would apparently require the Court to "create material terms," such as imposing a new transfer deadline, which section 664.6 does not allow. (See <i>Hernandez v. Board of Education</i> (2004) 126 Cal.App.4th 1161-1175-1176.) Therefore, the motion is DENIED without prejudice as to enforcement of the settlement. The parties are strongly encouraged to meet and confer to resolve this dispute informally to avoid wasting judicial resources and incurring further attorney fees. The Court may impose monetary sanctions against either or both parties and/or their counsel if the Court finds they have failed to engage in good-faith efforts to comply with this order and complete the settlement in good faith. Plaintiffs shall give notice.
10	Morrell v. City of Huntington Beach 2025-01459049 Motion for Summary Judgment Granted	Defendant City of Huntington Beach's Motion for Summary Judgment is GRANTED. The City's objections to evidence are sustained. However, the Court declines to rule on any objections improperly asserted in the parties' respective separate statements that were not also filed separately as required. (See Cal. Rules of Ct., rule 3.1354(b); <i>Hodjat v. State Farm Mutual Automobile Ins. Co.</i> (2012) 211 Cal.App.4th 1, 8-9. The City contends it is entitled to summary judgment on the grounds that (1) it did not have either actual or constructive notice of the allegedly dangerous condition, and (2) Plaintiff cannot establish that a negligent act of a City employee created the allegedly dangerous condition.

		Government Code § 835 sets forth the parameters when a public entity is liable for injury caused by a dangerous condition. Government Code § 835.2 explains the notice requirements referenced in Government Code § 832. Plaintiff has provided no evidence or established a triable material issue that a negligent act of any City employee created the dangerous condition. The City did not have actual notice of the condition of the sidewalk prior to the incident since there were no previous reports of the condition of the sidewalk or injuries caused by the condition of the sidewalk. Plaintiff has not submitted admissible evidence refuting the City's evidence. Regarding constructive notice, Plaintiff cannot prove the condition was sufficiently obvious. Plaintiff concedes in her discovery response that the condition was not open and obvious. Defendant shall give notice.
11	Ramos v. General Motors, LLC 2025-0145992 Motion for Attorney Fees	Plaintiff, Michele L. Ramos' motion for award of reasonable attorneys' fees, costs and expenses is GRANTED, as modified. The court awards attorneys' fees of \$10,665 (\$450 x 23.7 hrs.). Costs: Plaintiff has filed a Memorandum of Costs in which she seeks \$578.76 in costs. Plaintiff is awarded \$578.76 in costs. [T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) "As the plain wording of section 1794, subdivision (d) makes clear, the trial court is 'to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.'" (<i>Ibid.</i>) Defendant challenges the total number of billable hours claimed by Plaintiff's counsel. First, Defendant challenges the 1.9 hours billed by Plaintiff's counsel for pre-engagement work. Time spent evaluating a potential client prior to engagement is not recoverable, therefore, the hours requested are reduced by 1.9.

	Second, Defendant challenges the 3.3 hours spent on client intake and pre-litigation tasks. The time spent is excessive and reduced by 0.5 hours. Third, Defendant challenges the 0.8 hours billed by Plaintiff's counsel for preparing the complaint. Although the complaint was drafted based on the firm's template, 0.8 hours is reasonable and therefore the court declines to exclude the fees. Fourth, Defendant challenges the 0.6 hours billed by Plaintiff's counsel for reviewing Defendant's form answer. The time spent is reasonable and therefore the court declines to exclude the fees. Fifth, Defendant challenges 1.4 hours billed by Plaintiff's counsel to discuss initial disclosures with Plaintiff and draft the initial disclosures on the grounds it is excessive and improperly block-billed. (<i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1010 ["Trial courts retain discretion to penalize block billing when the practice prevents them from discerning which tasks are compensable and which are not."].) Here, the block-billing by Plaintiff does not prevent the court from determining whether the time billed is compensable. Therefore, the court declines to exclude fees for the 1.4 hours for drafting the initial disclosures and discussing them with Plaintiff. Sixth, Defendant challenges the 1.6 hours billed by Plaintiff's counsel to review Defendant's initial disclosure and 81 pdf documents. Defendant argues that many of these documents are uniform booklets or manuals like the service policy manual that counsel has reviewed previously in other matters he has pending against Defendant and it therefore should not have taken more than an hour to adequately review these standardized documents. The amount billed is excessive and reduced by 0.5 hours. Seventh, Defendant challenges 1.2 hours billed by Plaintiff's counsel on August 18 to prepare for and attend the CMC on the grounds the hearing was not necessary and could have been avoided by filing a Notice of Settlement because Plaintiff had already executed a settlement agreement on August 8. Plaintiff has shown since the vehicle repurchase and restitution were not completed until surrender on September 10, 2025, appearing for the CMC and advising the court of the status was reasonable. However, the amount billed for preparing for the CMC by reviewing "complaint, case status, and other information on file" is excessive and hours requested are reduced by 0.3 hours.
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		Eighth, defendant challenges the 3.4 hours billed for negotiating vehicle surrender between August 21, 2025 and November 5, 2025. Plaintiff has block-billed the time and several of the entries are for scheduling surrender of the vehicle which is an administrative task that should not be billed at an attorney rate. Therefore, the amount billed is reduced by 0.8 hours. Nineth, Defendant challenges 1.3 hours billed by Plaintiff's counsel for internal communications on administrative and case management discussions. The court reduces the hours requested by 0.3 hours for internal communication on administrative tasks. Tenth, Defendant challenges 6.9 hours billed in communications with Plaintiff. The amount billed is reasonable and the court declines to exclude the requested fees. Eleventh, Defendant challenges 1.3 hours on administrative and case management tasks. Purely clerical or secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (<i>Missouri v. Jenkins</i> (1989) 491 U.S. 274, 288, fn. 10.) However, Defendant has failed to identify any dates of the challenged billing entries. Therefore, the request to exclude time billed on administrative and case management tasks is denied. Lastly, Defendant challenges the 2.2 hours billed to draft the fee Motion on the grounds the fee motion comprises of a generic 7-page motion and Geoulla's declaration is substantially the same from case to case. The amount requested is excessive and reduced by 0.5 hours. Based on the foregoing, the hours requested are reduced by 4.8. The court awards attorneys' fees of \$10,665 (\$450 x 23.7 hrs.). Plaintiff has filed a Memorandum of Costs in which she seeks \$578.76 in costs. Defendant failed to file a motion to tax costs, and the time to do so has passed. (Cal. Rules of Ct., Rule 3.1700, subd. (b)(1). Plaintiff is awarded \$578.76 in costs. Moving party shall give notice.
12	SBS Trustdeed Network v. Estate of Elaine Thomas 2023-01338514 Motion for Leave to Intervene	Petitioner Bourbon Holdings, LLC's ("Bourbon Holdings") motion for an Order allowing Bourbon Holdings to file a complaint in intervention, seeking a release of interpleaded funds is DENIED. Here, Bourbon Holdings is already a party to the action. On 4-26-24, Cross-Complainant Randall Sharp filed a Verified Cross-Complaint against Bourbon Holdings for Nullification of